

breach of the obligation in respect to which said declaration is sought.” (Code Civ. Proc., § 1060; *Ball v. FleetBoston Financial Corp.* (2008) 164 Cal.App.4th 794, 800.)

The seventh cause of action for declaratory relief alleges that an actual controversy exists between the parties regarding the amount of profits due to Plaintiffs and an accounting of all profits that are/were due to Peri, Inc. and its shareholders. (FAC ¶ 62.) Although Plaintiffs use the phrase “Declaratory Relief” in the title for their cause of action, Plaintiffs clearly seek an accounting. They do not request a declaration of their rights or duties under any purported contracts.

An accounting action “is a proceeding in equity for the purpose of obtaining a judicial settlement of the accounts of the parties in which proceeding the court will adjudicate the amount due, administer full relief and render complete justice.” (*Verdier v. Superior Court in & for City & County. of San Francisco* (1980) 88 Cal.App.2d 527, 531.) “An accounting cause of action is equitable and may be sought where the accounts are so complicated that an ordinary legal action demanding a fixed sum is impracticable.” (*Id.* at 1120.). “An accounting will not be accorded with respect to a sum that a plaintiff seeks to recover and alleges in his complaint to be a sum certain.” (*Id.*) A right to an accounting is derivative and must be based on other claims. (*Id.*, citing *Janis v. Cal. St. Lottery Commission* (1998) 68 Cal.App.4th 824, 833–34.)

The demurrer to the seventh cause of action is **SUSTAINED** to the extent it seeks declaratory relief, and **OVERRULED** to the extent it seeks an accounting.

Should Plaintiffs desire to file an amended complaint that addresses the issues in this ruling, Plaintiffs must file and serve it by December 29, 2023.

Defendants to give notice.

Motion to Strike

Defendants Mohammad Tabatabai, Sanaz Sarbasi, Shayan Doosty, Michael Hsu, and Peri, Inc. move to strike the punitive damages allegations located at page 8, lines 10-12 of the First Amended Complaint, requests for punitive and exemplary damages and attorney’s fees, and Exhibits 1-7. For the following reasons, Defendants’ motion is **DENIED**.

		A party may move to strike a pleading pursuant to Code of Civil Procedure section 435. In turn, Code of Civil Procedure section 436 provides that a court may strike (a) “any irrelevant, false, or improper matter” in a pleading, or strike (b) all or any part of a pleading “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” In light of the court’s concurrent ruling regarding Defendants’ demurrer, the motion to strike Plaintiffs’ punitive damages allegations, claims for punitive damages and attorneys’ fees, and Exhibits 1-7 is MOOT. Defendants to give notice.
3	Roberto vs. Clever Care of Golden State, Inc.	<u>Demurrer to Complaint</u> TENTATIVE RULING: Defendant Clever Care of Golden State Inc.’s Demurrer to Plaintiff Ronald Roberto’s Complaint is OVERRULED. The Court finds, while Defendant did not meet and confer “in person or by telephone,” as required by section 430.41, subdivision (a) of the Code of Civil Procedure, the parties have made their positions clear, yet they have been unable to resolve their dispute, thus necessitating the Demurrer. The Court GRANTS Defendant’s requests for judicial notice. <u>Standard for Demurrer</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) The complaint must be construed liberally by drawing reasonable inferences from the